

		<i>California</i> (2009) 175 Cal. App. 4th 1043, 1048 - "motion was invalid when filed because it failed to comply with the statutory procedural requirement that the motion contain the requisite affidavit.") In addition, the motion itself does not identify new facts or evidence. Plaintiff's assertions that the Court made an error in granting the motion does not constitute "new or different facts, circumstances, or law" as required by Code of Civil Procedure §1008. (<i>Gilberd v. AC Transit</i> (1995) 32 Cal.App.4th 1494, 1500.) Accordingly, the motion is DENIED. Clerk shall give notice.
4	Berndt v. Iron 8 Properties	Plaintiff Christopher Berndt's unopposed Motion to Consolidate OCSC 26-01547394 with OCSC 26-01561206 is GRANTED. The Court finds the cases have common issues of law and fact. The Court orders a complete consolidation. OCSC 26-01547394 is lead case. All future filings for OCSC 26-1561206 shall be filed in the lead case. All filings must comply California Rule of Court Rule 3.350(d). Plaintiff's counsel is ordered to file a notice including a copy of this ruling in OCSC 26-1561206 within 5 court days and to file and serve notice that this has been done. Plaintiff's counsel shall give notice of the Court's ruling on this Motion.
5	Konzelman v. Cushman & Wakefield U.S. Inc. et al	Before the Court at present is the Demurrer filed on 4/27/26 by Defendants Cushman & Wakefield U.S., Inc. and Lorraine Drown ("Defendants"), directed to the Eleventh and Twelfth Causes of Action in the First Amended Complaint ("FAC") filed on 4/1/26 by Plaintiff Regina Frances Konzelman ("Plaintiff"). The Demurrer is OVERRULED as to the Eleventh and Twelfth Causes of Action. For the Eleventh Cause of Action, the FAC asserts that Plaintiff experienced retaliation for making complaints to management about her working conditions. (FAC ¶¶ 13, 15, 90-92.) Internal complaints about working conditions have been deemed sufficient to state this cause of action. (<i>Zirpel v. Alki David Productions, Inc.</i> (2023) 93 Cal.App.5th 563, 566, 578.) This claim is thus adequately pled to withstand demurrer. For the Twelfth Cause of Action, the FAC alleges that Defendants "falsely informed Plaintiff's subsequent employer that Plaintiff had work performance issues and that was the reason she was terminated from Cushman & Wakefield." FAC ¶ 94. Defendants assert that "work performance issues" is a matter of opinion, not fact. True, the phrase "work performance issues" is broad and vague; simply stating that someone had "work performance issues" is more a statement of opinion than fact. But Defendants stated